

TENANCY LEASE AGREEMENT

COMMERCIAL RENTAL
AGREEMENT



COMMERCIAL TENANCY LEASE AGREEMENT

DATED THIS 10th DAY OF JULY 2026

BETWEEN

GLOBAL STAR INVESTMENTS LIMITED, P.O. Box 423-40600, Jaramogi Oginga Odinga Street, Siaya, Kenya (hereinafter referred to as "the Landlord", which expression shall include its successors, assigns, and property representatives);

AND

HAND IN HAND EASTERN AFRICA, P.O. Box 8562-00100 Nairobi | Suite 27, 2nd Floor, Lower Hill Duplex Apartments, Upper Hill Road, Phone Number: +254703960766, KRA PIN: P051385617C, Email Address: info@handinhand-ea.org (hereinafter referred to as "the Tenant", which expression shall include personal representatives, successors, assigns and guarantors where applicable).

1. PREMISES & APPROVED USE

The Space: The Landlord agrees to let and the Tenant agrees to take on tenancy OFFICE NO. 19, located on the First Floor, measuring exactly 215 square feet, within the commercial building erected upon TITLE NO. SIAYA/TOWNSHIP/PLOT 1/550, Siaya County, Kenya.

Approved Use: The Premises shall strictly be used for the Tenant's formal administrative offices, programme coordination, and community development operations.

2. TERM OF THE AGREEMENT

Fixed Duration: This Lease shall be for a fixed term of Two (2) Years, commencing on the 1st day of June 2026 and expiring on the 31st day of May 2028, unless terminated earlier in strict accordance with the provisions of this Agreement.

Tenant Early Termination (Funding Conditional): Notwithstanding the fixed term, the Tenant may terminate this Lease early only in the event of documented institutional funding loss or donor budget retraction, by serving the Landlord with not less than six (6) months' written notice of its intention to vacate. In the absence of such funding justification, the Tenant remains liable for rent for the duration of the term.

Renewal Notice: Either party wishing to renew the tenancy upon expiry shall provide the other party with not less than two (2) months' written notice prior to the expiry date. Any renewal remains subject to mutual written agreement.

3. RENT, CALCULATION BASIS & CADENCE

3.1 Financial Arithmetic

To satisfy institutional audit requirements and Withholding Tax tracking, the baseline parameters are hardcoded as follows:

Gross Quarterly Base Rent: KSh. 50,166.67 (*Kenya Shillings Fifty Thousand, One Hundred Sixty-Six and Sixty-Seven Cents only*) per quarter.

Value Added Tax (VAT at 16%): KSh. 8,026.67 (*Kenya Shillings Eight Thousand, Twenty-Six and Sixty-Seven Cents only*) per quarter.

Total Gross Quarterly Obligation: KSh. 58,193.34 (*Kenya Shillings Fifty-Eight Thousand, One Hundred Ninety-Three and Thirty-Four Cents only*) per quarter.

3.2 Advance Payment Deadlines & Cadence

The Total Gross Quarterly Rent Payable shall be paid quarterly in advance on or before the 10th day of the first month of each running calendar quarter.

All payments shall be made via direct bank transfer into the Landlord's designated corporate line: Global Star Investments Limited, Kenya Commercial Bank (KCB), Siaya Branch, Account Number: 1285399528.

4. TAX OBLIGATIONS AND COMPLIANCE

4.1 KRA eTIMS Transmission: The Landlord shall maintain active registration on the KRA eTIMS platform. Following payment confirmation, the Landlord shall transmit a compliant eTIMS breakdown invoice directly to the Tenant's registered email.

4.1.1 Withholding Tax (WHT): As an appointed agent, the Tenant shall deduct the 10% statutory Withholding Tax from the Gross Quarterly Base Rent line (KSh. 5,016.67) and remit it directly to the Kenya Revenue Authority (KRA). The Tenant must transmit the official KRA Withholding Tax Certificate to the Landlord within seven (7) days of remittance.

4.2 Security Deposit Alignment: Upon execution of this Agreement, the Tenant shall pay a refundable security deposit of exactly KSh. 50,166.67 (*equivalent to 3 months of base rent excluding VAT*) to be held by the Landlord to secure performance.

4.3 Refund of Deposit: The deposit shall be refunded to the Tenant within thirty (30) days after the successful vacant surrender of the premises, less any undisputed, documented rental arrears, utility bills, or costs for structural damage exceeding fair wear and tear.

5. PENALTIES FOR LATE PAYMENT

Time is of the essence for all rent payments. If any quarterly rent installment remains unpaid past midnight on the 10th day of the opening billing month of the quarter:

A flat late fee penalty of KSh. 2,000.00 shall automatically apply on the 11th day.

Interest at the rate of 1.5% per month shall accumulate on all outstanding overdue arrears until paid in full.

If rent remains unpaid for thirty (30) consecutive days, it shall constitute a Material Breach, granting the Landlord immediate rights of re-entry and forfeiture under Clause 16.

6. UTILITIES AND SERVICE CONTINUITY

6.1 Sub-Metered Utility Invoicing: The Tenant shall pay for all electricity and water consumed within the internal perimeter of Office No. 19. Consumption shall be calculated strictly against the unit's dedicated physical sub-meters. Readings shall be taken on the last day of each month by the designated site manager, and the Tenant shall settle the invoice within seven (7) days.

6.2 Service Charge Waivers: Access to shared washroom facilities, common area cleaning, stairways, and corridor security lighting are completely complimentary and wrapped into the base rent structure without separate CAM markups. Normal utility infrastructure maintenance is the responsibility of the Landlord.

7. BIENNIAL RENT REVIEW AND ESCALATION

The basic quarterly rent shall remain flat and frozen for the entire two-year duration of this agreement. Any future rent review or escalation following the expiration of this initial 2-year block shall require mutual written agreement and shall be strictly capped at a maximum of ten percent (10%) of the preceding base rent.

8. TENANT'S OBLIGATIONS AND COVENANTS

The Tenant hereby covenants with the Landlord:

To pay rent, tax obligations, and utilities on time in accordance with this Agreement.

To keep the interior of the Premises, including fixtures, locks, windows, and electrical fittings, in good and tenantable repair (fair wear and tear excepted).

Not to make structural alterations, layout additions, or modifications to walls and flooring without prior written consent from the Landlord.

Not to assign, sublet, or part with possession of the Premises or any part thereof to an unrelated third party without advance written authorization from the Landlord.

9. LANDLORD'S OBLIGATIONS AND COVENANTS

The Landlord hereby covenants with the Tenant:

To grant the Tenant quiet enjoyment of the Premises without unlawful interruption or interference, provided all covenants are fulfilled.

To maintain the main structure of the building, including the roof, outer walls, main drainage systems, and structural concrete frames, in good repair.

To ensure prompt settlement of all property land rates and primary building taxes levied by county or national authorities.

10. INSURANCE

The Landlord shall be responsible for insuring the primary concrete building structure against fire and catastrophic risks. The Tenant shall be entirely responsible for insuring their own office furniture, equipment, computers, records, and personal property housed within the interior of the let Premises. The Landlord carries no liability for damage or theft of the Tenant's property, unless directly caused by proven gross negligence on the Landlord's part.

11. ALTERATIONS AND IMPROVEMENTS

Any internal partitioning, custom cabinetry, or branding designs required by the Tenant shall be executed at the Tenant's sole expense, subject to prior written approval from the Landlord. Upon vacating the Premises, the Tenant shall remove all such temporary partitions and fittings, making good any superficial damage caused to walls or floors.

12. DAMAGE OR DESTRUCTION

If the Premises are damaged or destroyed by fire or other disasters not caused by the negligence of the Tenant so as to render the space completely untenable:

The rent payment obligation shall be suspended partially or fully in proportion to the damage until the Premises are restored to a tenantable condition.

If restoration works cannot be completed within sixty (60) days from the date of destruction, either party may terminate this Agreement immediately by giving written notice.

13. INDEMNITY

The Tenant shall indemnify and hold the Landlord harmless from and against all operational liabilities, legal claims, actions, personal injury actions, losses, or structural damages arising from the Tenant's business activity, equipment failure, negligence, or breach of any terms of this Agreement within the let space.

14. SUBLETTING AND ASSIGNMENT

The Tenant is strictly prohibited from entering into subleases, secondary sharing agreements, or assigning the tenancy of Office No. 19 to secondary corporate extensions or distinct organizations without the express, formal written signature of the Landlord. Internal project use by official employees or auditors in connection with the Tenant's core mandate shall not constitute unauthorized assignment.

15. ACCESS AND INSPECTION

The Landlord reserves the right to enter the Premises without notice under emergency circumstances (e.g., electrical fires, burst internal pipes) to protect property assets. For routine inspections or structural modifications, the Landlord shall provide at least twenty-four (24) hours' prior notice and enter during reasonable working hours.

16. TERMINATION, MATERIAL BREACH AND FORFEITURE

16.1 Material Breach Events: Pursuant to Section 73 of the Land Act (No. 6 of 2012), the Landlord may declare this Agreement in Material Breach, terminate the lease early, and initiate forfeiture proceedings if any quarterly rent installment or sub-metered utility invoice remains unpaid past thirty (30) days from the due date, or if the Tenant breaches any other material covenant and fails to remedy it within fourteen (14) days of receiving a warning notice.

16.2 Right of Re-entry & Forfeiture: Upon an uncured Material Breach, and following the expiration of the statutory notice served under Section 75 of the Land Act, the Landlord reserves the right to re-enter the Premises, change the locks, take vacant possession, disconnect auxiliary sub-meter lines, and exercise rights under the Distress for Rent Act (Cap 293) to recover outstanding arrears.

17. VACANT POSSESSION AND HOLDOVER

Upon termination of this tenancy by notice or operation of breach rules, the Tenant must peacefully hand over vacant possession of the space. If the Tenant fails to clear the unit past the notice deadline, they shall be liable to pay liquidated daily occupancy damages calculated at double the prorated market daily rate until full possession is surrendered.

18. JURISDICTION & DISPUTE RESOLUTION

In the event that the parties fail to resolve a dispute amicably through direct consultation within fourteen (14) days, the matter shall be escalated exclusively to the Siaya Law Courts within Siaya County, Kenya, which shall serve as the sole court of competent jurisdiction for primary litigation, execution of summary decrees, or applications for distress for rent under the laws of Kenya.

19. FORCE MAJEURE

Neither party shall be held responsible for failures or operational delays resulting from unpredictable events completely beyond reasonable control, including civil unrest, national lockouts, military actions, or acts of God.

20. COMMUNICATION CHANNELS & SERVICE OF NOTICES

All formal notices, billing demands, utility statements, and legal updates required under this lease shall be in writing and deemed sufficiently served if delivered via Electronic Mail (Email) sent to the verified corporate accounting email destinations: info@handinhand-ea.org and the Landlord's designated physical or email address: globalstarinvest@gmail.com.

SMS and WhatsApp messaging via verified numbers of both parties may be utilized for routine operational check-ins and meter-reading reminders.

21. ENTIRE AGREEMENT

This Agreement constitutes the entire agreement between the parties. No oral promise, representation, or understanding shall vary this Agreement unless reduced into writing and signed by both parties.

22. EXECUTION

SIGNED for and on behalf of GLOBAL STAR INVESTMENTS LIMITED:

Name: Peter Odhiambo

Designation: Director

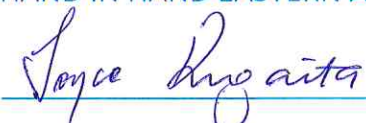
Signature: 

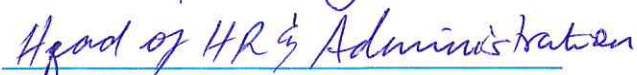
Date: 10th July 2026



COMPANY STAMP:

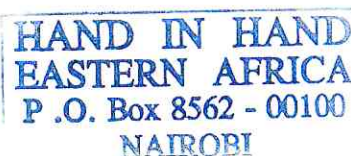
SIGNED for and on behalf of HAND IN HAND EASTERN AFRICA:

Authorized Signatory Name: 

Designation or Title: 

Signature: 

Date: 10/7/2026



ORGANIZATION SEAL/STAMP:

WITNESS / ADVOCATE TO THE ESCROW:

Name: Paul Owino Ogutu

ID No.: 21169751

Law Firm / Address: Obambo School, P.O. Box 423-40600, Siaya, Kenya

Signature: 

Date: 10 July 2026